AS TO THE ADMISSIBILITY OF

Application No. 18431/91
by Peter BERNSTORFF
against the Federal Republic of Germany

The European Commission of Human Rights (First Chamber) sitting in private on 2 September 1992, the following members being present:

MM. F. ERMACORA, Acting President of the First Chamber
J. A. FROWEIN
E. BUSUTTIL
A.S. GÖZÜBÜYÜK
Sir Basil HALL
Mr. C.L. ROZAKIS
Mrs. J. LIDDY
MM. M. PELLONPÄÄ
B. MARXER

Mr. M. de SALVIA, Secretary to the First Chamber

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 28 April 1991 by Peter Bernstorff against the Federal Republic of Germany and registered on 1 July 1991 under file No. 18431/91;

Having regard to the report provided for in Rule 47 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The applicant is a German citizen, born in 1939. He is practising as a lawyer in Hannover.

The applicant complains of his obligatory membership in a professional social insurance institution and of unfairness of administrative court proceedings which he unsuccessfully instituted with a view to being exempted from membership of the institution.

By decision of 3 May 1988 the Hannover Administrative Court (Verwaltungsgericht) dismissed the action. An appeal was rejected by the Administrative Court of Appeal (Oberverwaltungsgericht) on 26 March 1990. The court did not grant leave to appeal on points of law. According to the findings of the courts, the defendant pension fund had in 1984 reduced the applicant's membership fees to one-tenth of the maximum social security amount, taking into account that he paid voluntary contributions to the social insurance system. In addition, in view of his income situation, the applicant had been exempted from paying contributions.

The administrative courts pointed out that the defendant institution, the Lawyers' Pension Fund of Lower Saxony (Niedersächsisches Versorgungswerk der Rechtsanwälte), had been created

in accordance with an Act of 1982 and that the applicant's obligatory membership followed from Section 2 (1) of this Act given the fact that he had been under 45 years of age when the Act came into force.

Referring to the case-law of the Federal Administrative Court (Bundesverwaltungsgericht), the Administrative Court of Appeal pointed out that the insurance system in question did not violate any fundamental rights and was not disproportionate or arbitrary. The court further held that the obligatory insurance system as applied in the applicant's case did not violate his personal rights. The fact that he had no income as a lawyer was irrelevant. It was considered reasonable and justified that even a lawyer without income remained a member without having to pay contributions. This made it possible for him to keep his legal status as an insured person and to reactivate his rights whenever his income situation improved. As he did not have to pay any contribution his membership did not in any way affect his voluntary membership in the social insurance system. Even if in view of a change in his income situation he would have to pay a minimum contribution (Solidarbeitrag), he would not have to pay more than 96,20 DM per month. This would not unreasonably affect his economic situation.

The applicant's complaint about the refusal of leave to appeal on points of law was rejected by the Federal Administrative Court on 27 August 1990 which in its reasoned decision refers to its own jurisprudence. The Federal Administrative Court fixed the value of claim in the amount of 31,332.22 DM. On 16 May 1991 the court corrected this part of the decision in that it fixed the value of claim at 4,000 DM.

A constitutional complaint (Verfassungsbeschwerde) was likewise rejected by a panel of three judges of the Federal Constitutional Court (Bundesverfassungsgericht) on 24 October 1990 as offering no prospect of success. The court referred to its jurisprudence according to which the creation of professional insurance institutions of the kind in question was compatible with the constitution.

The court added that constitutional rights might be affected where the obligatory membership appeared to result in compulsory overinsurance in view of other insurance contracts of the person concerned or constituted an unreasonable economic burden. None of these two alternatives were found, particularly in view of the fact that the applicant was exempted from paying contributions. A violation of his right to be heard did not follow simply from the fact that the applicant's legal arguments had been rejected or left aside for reasons of formal or substantive law. Therefore the courts had not acted arbitrarily in considering irrelevant the applicant's argument that, from the point of view of insurance mathematics, the age-limit for becoming an obligatory member could have been lower.

COMPLAINTS

The applicant mainly complains of his obligatory membership in the social insurance scheme and the refusal of his request to be exempted.

The applicant further considers that he was denied a fair hearing and that the Administrative Court of Appeal for formal reasons did not take into account his main arguments. The Federal Administrative Court violated his right to be heard by rejecting, without examining the merits of his case, his complaint against the refusal of leave to appeal on points of law. The Federal Administrative Court was biased - it initially fixed an unreasonable value of claim.

THE LAW

1. In so far as the applicant complains of his obligatory membership in the social insurance institution his complaint is incompatible with the Convention ratione materiae as by virtue of its legal nature and its public functions the insurance institution in question cannot be considered as an association within the meaning of Article 11 (art. 11) of the Convention (cf. No. 6054/73, Dec. 6.7.77, D.R. 9, p. 5; Eur. Court H.R., Lecomte, Van Leuven and De Meyere judgment of 23 June 1981, Series A No. 43, p. 26 et seq., paras 63-65).

It follows that this complaint is inadmissible under Article 27 para. 2 (art. 27-2) of the Convention.

2. In so far as the applicant complains that his personal request to be exempted from membership was rejected by the German courts the Commission points out that it is not competent to examine whether the domestic courts committed errors of law or fact in deciding upon the applicant's request except where such errors might have violated Convention rights.

3. In this conection the Commission notes the applicant's procedural complaints. It has examined these complaints under Article 6 para. 1 (art. 6-1) of the Convention which guarantees a fair hearing by an impartial tribunal in the determination of civil rights. However, assuming that this provision applies, the Commission finds no indication that substantial and relevant facts or legal arguments submitted by him in the domestic proceedings have arbitrarily been disregarded by the competent courts. The Federal Constitutional Court has rightly pointed out that facts or arguments which for reasons of formal or substantive law are irrelevant can be disregarded by the courts. There is furthermore nothing to show that the Federal Administrative Court arbitrarily rejected the applicant's complaint about denial of leave to appeal. The court states reasons for its decision and these reasons are based on jurisprudence. The applicant has not shown that these reasons are in any way incompatible with domestic law or arbitrary in view of the particularities of his case. There is consequently no appearance of a violation of the rights guaranteed by Article 6 (art. 6) of the Convention in this respect.

As far as the applicant alleges that the Federal Administrative Court showed bias in fixing a high value of claim, the Commission notes that the court itself corrected its decision and reduced the value of claim. These circumstances in no way disclose any appearance of bias.

It follows that this complaint must be rejected as being manifestly ill-founded within the meaning of Article 27 para. 2 (art. 27-2) of the Convention.

For these reasons, the Commission unanimously

DECLARES THE APPLICATION INADMISSIBLE.

Secretary to the First Chamber Acting President of the First Chamber

(M. de SALVIA) (F. ERMACORA)